

OFFICE OF THE SECRETARY

PO Box 942883

Sacramento, CA 94283-0001



September 16, 2020

The Honorable Lance A. Ito
Judge of the Superior Court
County of Los Angeles
210 West Temple Street
Los Angeles, CA 90012

Re: Sandra Fabiola Bustos
CDCR No: WA2229
Case No: BA314861-01
Date of Sentence: October 27, 2009

Dear Honorable Lance A. Ito:

The purpose of this letter is to provide the court with the authority to resentence inmate Sandra Bustos, WA2229 pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon her exceptional conduct while incarcerated. PC Section 1170, subdivision (d)(1) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Bustos has received five Rules Violation Reports since her incarceration, but has remained disciplinary free since December of 2014. Inmate Bustos is currently assigned as a Plant Operations Carpenter and a Youth Mentor. Bustos also attends numerous self-help and educational groups. Inmate Bustos's supervisor's note that she shows up to work every day and does whatever is asked of her without complaint and she is a quick learner. Self-help sponsors have noted that Inmate Bustos shows a lot of initiative and desire for self-improvement.

Inmate Bustos is to be commended for earning her High School Diploma while being incarcerated. Bustos has also learned valuable skills related to computer technology and is using her knowledge to facilitate classes for the inmate population. Inmate Bustos completed the Last Mile Coding and Software Engineering Program, which is considered the most progressive prison education program in the country. This training equipped Inmate Bustos with marketable business and technology skills for post release successes. The instructor reported that in all of her years as an educator with hundreds of youth and adults, she has never encountered a more optimistic and grounded student.

Various staff at California Institution for Women have been interviewed in regards to inmate Bustos' current programming and behavior. Staff reported that Inmate Bustos is assigned to the Honor Dorm, which is housing reserved for inmates who program well and remain disciplinary free. Inmate Bustos is considered a hard worker who tries to better the living unit by volunteering her time when necessary. Inmate Bustos remains respectful towards inmates and staff even if there is a difference of opinion.

Having reviewed the enclosed documentation it appears that inmate Bustos' sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that she be resentenced.

Sincerely,


(for) RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Los Angeles County District Attorney's Office
Los Angeles County Public Defender's Office